



CHAPTER cv.

An Act to enable the Soothill Nether Urban District Council to make and maintain tramways and street improvements to acquire land for the purpose of a refuse destructor and for other purposes.

A.D. 1904.

[22nd July 1904.]

WHEREAS the district of Soothill Nether in the West Riding of the county of York is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Soothill Nether Urban District Council (in this Act called "the Council"):

And whereas it is expedient and would be for the public convenience that the Council should be authorised to make and maintain the tramways and works by this Act authorised and to acquire lands for the purposes thereof:

And whereas it is expedient to make provision for the construction and working of the tramways by this Act authorised and to confer upon the Council or their lessees the powers in regard to such tramways contained in this Act:

And whereas it is expedient that the Council should be empowered to make and execute the street widenings in this Act mentioned and to stop up a public footpath called the Church Steps adjoining the burial ground of St. Peter's Church Earlsheaton:

And whereas it is expedient that the Council and other local authorities companies or persons be empowered to enter into and carry into effect agreements as herein-after provided:

And whereas it is expedient that the Council should be empowered to borrow money for the purposes mentioned in this Act:

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

And whereas it is expedient that the further powers in this Act contained should be conferred upon the Council :

And whereas estimates have been prepared by the Council for the purposes herein-after mentioned and such estimates are as follows :—

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For and in connexion with the construction of the tramways by this Act authorised	- 36,523
For the purchase of land for and in connexion with the construction of the new streets and street widenings by this Act authorised	- 10,330
For the purchase of land for and in connexion with the construction of the refuse destructor by this Act authorised	- - - 3,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the sixteenth day of October one thousand nine hundred and three after ten clear days' notice by public advertisement of the meeting and of the purposes thereof in the *Ossett Observer* a local newspaper published and circulating in the district such notice being in addition to the ordinary notice required for summoning the meeting resolved that the expenses in relation to the promotion of the Bill for this Act should be charged on the district fund and general district rate or be paid out of moneys to be borrowed under this Act :

And whereas that resolution was published twice in the *Dewsbury Reporter* being a local newspaper published and circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill as introduced into Parliament for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twelfth day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed : A.D. 1904.

And whereas plans and sections showing the lines and levels of the works authorised by this Act and the lands in or through which the same are intended to be made and plans of the lands which are authorised to be acquired under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been duly deposited with the clerk of the peace for the West Riding of the county of York and those plans sections and book of reference are in this Act respectively referred to as "the deposited plans sections and book of reference" :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Soothill Nether Urban District Tramways Act 1904. Short title.

2. The following Acts and parts of Acts so far as the same are applicable to the purposes of and are not varied by or are not inconsistent with this Act are incorporated with and form part of this Act :— Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

Sections 3 19 and 20 of Part I. and Parts II. and III. of the Tramways Act 1870.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there Interpretation.

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 Edw. 7.]
Act, 1904.

A.D. 1904. be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—
—

“The district” means the urban district of Soothill Nether in the West Riding of the county of York;

“The Council” means the urban district council of the district;

“The tramways” and “the tramways undertaking” mean respectively the tramways and other works and the tramways undertaking by this Act authorised;

“Mechanical power” includes electrical and every other motive power not being animal power;

“Engine” includes motor;

The several words and expressions to which meanings are assigned in enactments incorporated with this Act or in the Public Health Acts or which have therein special meanings have in this Act (except where otherwise expressly provided) the same respective meanings unless there be something in the subject or context repugnant to such construction;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Council.

PART II.

TRAMWAYS.

Power to
make tram-
ways and
other works.

4. Subject to the provisions of this Act the Council may make form lay down work use and maintain the tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates posts tubes wires apparatus stations depôts works and conveniences connected therewith.

[4 EDW. 7.] *Soothill Nether Urban District Tramways* [Ch. cv.]
Act, 1904.

The tramways herein-before referred to and authorised by this Act will be situated wholly in the district and are— A.D. 1904.

Tramway No. 1A (0 mile 1 furlong 4·45 chains in length of which 9·55 chains will be laid as a single line and 4·90 chains as double) commencing in the Wakefield or Dewsbury Road at the common boundary of the borough of Dewsbury and the urban district of Soothill Nether and terminating in Wakefield (otherwise called Dewsbury) Road by a junction with Tramways Nos. 2 and 3 at the commencement thereof:

Tramway No. 2 (0 mile 3 furlongs 9·25 chains in length of which 2 furlongs and 0·35 chain will be laid as a single line and 1 furlong and 8·90 chains as double) commencing by a junction with Tramway No. 1A at its termination and terminating at a point in the Wakefield (otherwise called Dewsbury) Road by a junction with Tramway No. 5 at the commencement thereof:

Tramway No. 3 (0 mile 2 furlongs 8 chains in length of which 9·25 chains will be laid as a single line and 1 furlong and 8·75 chains as double) commencing by a junction with Tramway No. 1A at its termination and terminating at the intersection of High Street and Town Street by a junction with Tramway No. 4 at the commencement thereof:

Tramway No. 4 (0 mile 4 furlongs 3·9 chains in length of which 2 furlongs and 1·40 chains will be laid as a single line and 2 furlongs and 2·50 chains as double) commencing by a junction with Tramway No. 3 at its termination proceeding in an easterly direction along Town Street as far as Syke Lane and then in an easterly and northerly direction along Syke Lane to its intersection with the Wakefield (otherwise called Dewsbury) Road and terminating by a junction with Tramway No. 5 at its commencement:

Tramway No. 5 (0 mile 5 furlongs 3·65 chains in length of which 3 furlongs and 7·55 chains will be laid as a single line and 1 furlong and 6·10 chains as double) commencing by a junction with Tramways Nos. 2 and 4 at their termination proceeding in an easterly direction along the Wakefield (otherwise called Dewsbury) Road and terminating at the common boundary:

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

Tramway No. 6 (0 mile 0 furlong 1·4 chains in length the whole of which will be laid as a double line) commencing by a junction with Tramway No. 2 in the Wakefield (otherwise called Dewsbury) Road and terminating at a point in Syke Lane by a junction with Tramway No. 4.

Gauge of
tramways.

5.—(1) The tramways authorised by this Act shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Council with the assent of the Board of Trade Provided that when the gauge is less than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

(2) No carriages or trucks adapted for use upon railways shall be used upon the tramways.

Rails of
tramways.

6. The rails of the tramways shall be such as the Board of Trade may approve.

Plan of pro-
posed mode
of construc-
tion.

7. In addition to the requirements of section 26 of the Tramways Act 1870 the Council shall before they open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Council shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Penalty for
not main-
taining rails
and roads.

8.—(1) The Council shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Council at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to

a penalty not exceeding five pounds and to a further penalty not exceeding five pounds for every day on which such non-compliance continues after conviction thereof. A.D. 1904.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which any portion of the tramways is situate or by twenty inhabitant ratepayers of the district or of such district that the Council have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Council to such penalty or penalties in respect thereof as is or are by this section imposed.

9. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any part of the tramways is laid or authorised to be laid the Council may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered. Tramways to be kept on level of surface of road.

10.—(1) The Council may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Council. Power to make additional cross-overs and to double tramway lines.

(2) Notwithstanding anything shown on the deposited plans the Council may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Council may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

A.D. 1904.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Council shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Council within three weeks after receiving the notice from the Council express their objection thereto.

Cross-over
to be con-
structed in
certain cases.

11. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Council shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Power to lay
double lines
in place of
single or
interlacing
lines and
vice versâ.

12. The Council may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time after the construction of any of the tramways the road in which the same or any part thereof is laid has been or shall be altered or widened the Council may take up and remove such tramways or part thereof and reconstruct the same in such position as they may think fit. Provided that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Council within three weeks after receiving from the Council notice in writing of their intention express their objection thereto.

Temporary
tramways
may be made
where neces-
sary.

13. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways is laid it is in the opinion of the Council necessary or expedient temporarily to remove or discontinue the use of such tramway or

any part thereof the Council may and shall within seven days of receiving an order in writing from the road authority under the hand of their clerk or surveyor discontinue or take up such portion of the tramways for such term as may be necessary for the execution of the said works. Provided that the Council may subject to such conditions and in accordance in all respects with any regulations from time to time made by the said authority construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

A.D. 1904.
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14. The Council may at any time if they deem it expedient to facilitate the construction or working of the tramways or any of them with the consent of the road authority set back the kerb of the footpath and widen the roadway of any street within the district. Provided always that the kerb shall not be so set back as to leave a footpath of less than six feet in breadth.

Setting back
of kerb of
footpath.

15.—(1) Any paving metalling or material excavated by the Council in the construction of any works under the authority of this Act from any road under their jurisdiction or control shall absolutely vest in and belong to the Council and may be dealt with removed and disposed of by them in such manner as they may think fit.

Application
of road ma-
terials exca-
vated in con-
struction of
works.

(2) If any surplus material excavated from any main road is not used for the repair or maintenance of any main road to which the West Riding of Yorkshire County Council are liable to contribute the value thereof shall be deducted from the payments to be made by the county council to the Council under section 11 (2) of the Local Government Act 1888.

(3) Any paving metalling or material lawfully excavated by the Council from any road under the jurisdiction of any road authority may be applied by the Council in or towards the reinstating of such road and the maintenance thereof for six months after completion of the tramways within the district of such road authority of so much of the road as the Council are required to maintain and the Council shall at their own expense if so required deliver the surplus paving metalling or material not used for the purposes aforesaid at such place within the district not being more than one mile from the place of excavation as the surveyor of the road authority shall appoint. Provided that if within seven days after notice in writing to the road

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 EDW. 7.]
Act, 1904.

A.D. 1904. authority that any such surplus is ready for delivery the surveyor shall not appoint a place for the delivery thereof such surplus shall vest in and belong to the Council.

Period for
completion
of tramways.

16. The tramways specified in and authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Council for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Inspection
by Board of
Trade.

17. The tramways authorised by this Act shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

Rates for
passengers.

18. The Council may demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and in computing the said rates and charges the fraction of a mile shall be deemed a mile but in no case shall the Council be bound to charge a less sum than twopence.

Passengers'
luggage.

19. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof provided that such luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Council not
to carry
animals and
goods.

20. The Council shall not carry on the tramways any goods animals or other things except mails other than passengers and passengers' luggage under and subject to the foregoing provisions of this Act.

Cheap fares
for labouring
classes.

21. The Council at all times after the opening of the tramways for public traffic shall and they are hereby required to run at least two carriages each way every morning in the week and every evening in the week (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than seven in the morning nor earlier than six in the evening respectively as the Council think most convenient for artizans mechanics and daily labourers at fares not exceeding one halfpenny per mile (the Council nevertheless not being required to take any fare less

than one penny) and on Saturdays the Council in lieu of running such carriages after six o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes. Provided that in case of any complaint made to the Board of Trade of the hours appointed by the Council for the running of such carriages the said Board shall have power to fix and regulate the same.

A.D. 1904.

22. The Council shall not nor shall any person working or using the tramways take or demand on Sundays or any bank or other public holiday any higher tolls or charges than those levied on ordinary working days.

As to fares
on Sundays
and holidays.

23. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of such district or by the Council that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges authorised by this Act but nothing herein contained shall prevent the Council from revising the rates from time to time as they think fit so long as the maximum charge prescribed by this Act is not exceeded.

Periodical
revision of
rates and
charges.

24. The rates and charges by this Act authorised to be demanded and taken by the Council in respect of the tramways shall be paid at such times and places and to such persons upon or near to the tramways and in such manner and under such

As to mode
of payment
of tolls.

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 EDW. 7.]
Act, 1904.

A.D. 1904 . regulations as the Council may from time to time by notice to be annexed to the list of tolls appoint.

Amendment
of Tramways
Act 1870 as
to byelaws
by local
authority.

25. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which carriages are to be driven or propelled on the tramways under the authority of this Act but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Motive
power.

26. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :

(2) The Board of Trade shall make regulations (in this Act referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power :

(3) The Council or if the tramways be leased the person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(A) That the Council or such person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;

may by order either direct the Council or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Council or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

A.D. 1904.

27. The Council may for the purpose of working any of the tramways by mechanical power lay down construct erect and maintain on in under or over the surface of any street road or public place in which the tramways or any of them are or may be situate and with the consent of the local authority and road authority on in under or over the surface of any other road or street in any district in which the tramways or any of them are or may be situate such posts conductors wires tubes mains plates brackets electric cables and apparatus and may make and maintain such openings and ways in on or under any such surface as may be necessary or convenient either for the working of the tramways or for providing access to or forming connexions with any generating station car shed engine machinery or apparatus of the Council and may for those purposes subject to the restrictions and provisions contained in Part II. of the Tramways Act 1870 open and break up any such street or road and raise alter remove and interfere with any sewers drains water or gas pipes tubes conductors telegraphic telephonic and electric wires posts and apparatus therein or thereunder :

Construction
of electric
works.

Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

28. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

Special pro-
visions as to
use of elec-
trical power.

- (1) The Council shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Council shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions

A.D. 1904.

and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Council shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Council either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :

(6) If any difference arises between the Council and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be: A.D. 1904.

(7) The expression "Council" in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Council.

29.—(A) Notwithstanding anything in this Act contained if any of the works by this Act authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. For protection of Postmaster-General.

(B) In the event of the tramways being worked by electricity the following provisions shall have effect:—

(1) The Council shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Council as to compliance with this subsection shall be referred to arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Council of their electric lines and works or by the working of the undertaking the Council shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

A.D. 1904.

- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Council or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Council and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Council as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Act authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Act at any works of the Council enter thereon for the purpose of inspecting the plant and the working of the same and the Council shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Council pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Council or their agents the Council shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

- (6) Provided that nothing in this section shall subject the Council or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice: A.D. 1901.
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Council or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Council by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Council" includes any person owning working or running carriages over the tramways.

A.D. 1904.
Apparatus
used for me-
chanical
power to be
deemed part
of tramways.

30. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Council for the purposes of mechanical power were parts of the tramway.

Attachment
of brackets
to buildings.

31. The Council may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways by mechanical power:

Provided that—

(1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

(3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

32.—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

A.D. 1904.

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

For regulating the emission of smoke or steam from engines used on the tramways ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

33. The Council may place and run carriages on and may work and may demand and take tolls and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power.

Power to
Council to
work tram-
ways.

34.—(1) The Council shall not commence the construction or laying down of the tramways or any part or parts thereof unless and until they have entered into an agreement with a corporation company or person to be approved by the Board of Trade for a lease to such corporation company or person of such tramways or part or parts thereof as the case may be for such period (not exceeding forty-two years) at such rent and upon such other terms and conditions as may be approved by the Board.

Provisions as
to construc-
tion and lease
of tramways
by Council.

A.D. 1904. of Trade Provided that in any such lease the amount to be paid to the Council by way of rent shall in no case be less than a sum sufficient to pay the interest on all moneys required to be borrowed for the purpose of the construction of the tramways and the electrical equipment thereof or of the part or parts so leased as aforesaid and also sufficient to provide the requisite appropriations instalments or sinking fund payments as provided by the section of this Act the marginal note whereof is "Mode of payment off of money borrowed."

(2) So soon as the Council have completed the tramways or part or parts thereof as the case may be so agreed to be leased as aforesaid the Council shall demise the said tramways or part or parts thereof together with such equipment as may be provided as aforesaid to such corporation company or person at the rent and upon the other terms and conditions so approved by the Board of Trade and the powers of the Council to work the tramways or part or parts thereof respectively shall be suspended during the continuance of such lease.

(3) All moneys received by the Council by way of rent under this section shall be treated as tramway revenue and applied in manner provided by the section of this Act the marginal note whereof is "Application of tramway revenue."

Power as
to supply of
electric
energy.

35. The Council may with the approval of the Board of Trade enter into and carry into effect agreements with any local authority company body or person authorised to produce or supply electric energy for the supply of electric energy to the Council by such local authority company body or person Provided that any supply of electric energy by any such local authority company body or person to the Council shall be subject to the provisions of the respective Acts or Order under which such local authority company body or person may be empowered to supply electric energy.

Regulations.

36. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Council be made by the Council alone.

Power to ac-
quire patent
rights.

37. For the purpose of using mechanical power the Council may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

38. The Council may with the consent of the Board of Trade but subject to the provisions of this Act—

A.D. 1904.

Working
agreements.

- (1) enter into and fulfil contracts and agreements with any local authority or persons who are authorised to enter into such contracts or agreements and are the owners or lessees of any tramways or light railways in any adjacent district which can be worked with any of the tramways of the Council with respect to—

(a) the lease working use management and maintenance of the whole or any part of the tramways by this Act authorised or of any tramways or light railways in any adjacent district;

(b) the making of all necessary junctions;

(c) the combined working by the Council and such local authority or person of their respective tramways and light railways;

(d) the granting of running powers over the tramways and obtaining running powers over such other tramways and light railways;

(e) the use by the contracting parties or any or either of them of their respective tramways light railways and works or any part or parts thereof;

(f) the supply and maintenance under any agreement for all or any of the respective tramways of the contracting parties being worked and used by any one or more of them of rolling stock plant and machinery necessary for the purposes and during the continuance of such agreement;

(g) the interchange accommodation and forwarding of carriages passengers and traffic coming from or destined for the respective undertakings of the contracting parties;

(h) the fixing collecting and apportionment of rates charges and other receipts arising from such combined working or traffic;

(i) the taking of guarantees against any loss arising by reason of any such agreement and the paying out of their respective rates any loss arising by reason of such guarantees; and

(k) the appointment and removal of officers;

- (2) confirm any such contracts and agreements which may be entered into before the passing of this Act.

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

For protec-
tion of main
road.

39. For the protection of the county council of the West Riding of Yorkshire (herein called "the county council") the following provisions shall have effect unless it is otherwise agreed in writing:—

The Council shall not be entitled to any annual or other payment from the county council under section 11 of the Local Government Act 1888 towards (a) the cost of maintenance repair or improvement of so much of any main road along which the tramways are laid as the Council is by this Act required to pave maintain and keep in repair and (b) the cost of any alteration in the level of any such road or any part thereof rendered necessary by reason of the construction of the tramways.

For protec-
tion of Great
Northern
Railway
Company.

40. The following provisions for the protection of the Great Northern Railway Company (herein-after in this section called "the company") shall unless otherwise agreed between the Council and the company in writing under their common seal apply and have effect:—

(1) The expression "Great Northern property" when used in this section shall mean any land railway siding work or convenience belonging to the company:

(2) The Council shall not without the previous consent of the company in writing enter upon take use or interfere with any Great Northern property:

(3) All works by this Act authorised where the same will be made over Great Northern property shall be constructed and maintained so as not to interfere with the structure of any bridge or tunnel belonging to the company and in all things at the expense of the Council and to the reasonable satisfaction of the engineer of the company (herein-after called "the engineer") according to plans sections and specifications to be previously approved by him or in case of difference between him and the engineer of the Council by an arbitrator to be appointed by the Board of Trade upon the application of either party after notice to the other. Before commencing any such works the Council shall give at least fourteen days' notice in writing to the company of their intention to execute the same:

(4) The Council shall not in any manner in the execution maintenance or repair of any of their works obstruct

hinder or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon : A.D. 1904.

- (5) The Council shall on demand pay to the company the reasonable expense of the employment by the company during the execution or repair of any work affecting any Great Northern property of a sufficient number of inspectors watchmen and signalmen for watching and signalling the same with reference to and during the execution or repair of any of their works and shall execute all such temporary works as the engineer may consider necessary for the purpose of avoiding risk to any railway or work belonging to the company or to any traffic thereon :
- (6) If by reason of the execution user or failure of any of the works of the Council or any act or omission of the Council or of their contractors or of any person in the employment of the Council or of their contractors or otherwise any work belonging to the company shall be injured or damaged such injury or damage shall be forthwith made good by the Council at their own expense or in the event of their failing so to do then the company may make good the same and the reasonable expenses thereof as certified by the engineer shall be repaid to the company by the Council on demand and the Council shall indemnify the company against all losses which the company may sustain and shall pay all costs charges and expenses which the company may be put to or incur by reason of the execution user or failure of any of the works of the Council or any act or omission of the Council or their contractors or any person in the employment of the Council or their contractors or otherwise :
- (7) If the engineer shall consider it necessary owing to the construction of the tramways that any bridge or tunnel belonging to the company over which the tramways by this Act authorised will be constructed should be strengthened or reconstructed then the company shall execute such strengthening or reconstruction as the case may be but in all things at the expense of the

A.D. 1904.

Council and the Council shall repay to the company all expenses of whatever nature which the company may incur in or in connexion with or arising out of the execution of any such strengthening or reconstruction and shall indemnify and hold harmless the company against all actions losses charges expenses claims and demands whatsoever in connexion with or arising out of the matters aforesaid :

(8) Any additional expense in the maintenance of any bridge or tunnel occasioned to the company by the construction or user of the tramways or the strengthening or rebuilding thereof as herein-before provided for shall be repaid by the Council to the company at the end of every year :

(9) If having regard to the proposed position of the works of the Council when considered in relation to the position of the works of the company at any point where the tramways by this Act authorised are or will be constructed over under or across any railway of the company the engineer shall think it advisable that the electric telegraphic telephonic or signal wires or apparatus of the company should be altered the company may execute any works reasonably necessary for such alteration and the expense of executing such works shall be borne by the Council :

(10) Any question arising between the Council and the company under this section shall be determined unless otherwise agreed by an arbitrator to be appointed by the Board of Trade on the application of either party.

Protecting
works of
Yorkshire
Electric
Power Com-
pany.

41. Section 30 of the Tramways Act 1870 shall apply to and have effect in respect of the works of the Yorkshire Electric Power Company in any street or road in which the tramways by this Act authorised are situate as if the said company were a gas or water company and their works were apparatus for the supply of gas or water.

PART III.

STREET WIDENINGS.

Power to
widen cer-
tain streets

42. The Council may subject to the provisions of this Act within seven years from the passing of this Act and within the

limits shown on the deposited plans construct the new road widen and improve the following streets or parts of streets namely :— A.D. 1904.

A new road (No. 1) commencing in Providence Street at a point 24 yards or thereabouts measured in an easterly direction from the north-eastern corner of the most easterly house in the said street and terminating by a junction with Short Street at its intersection with the road to Syke Ing Mills and to make provision for the payment of the cost thereof :

A new road (No. 2) commencing at the west end of Short Street at a point 12 yards or thereabouts north of the north-west corner of Chickenley Mills and proceeding in a northerly direction along the road to Syke Ing Mills and terminating at a point 3 yards or thereabouts measured in a northerly direction from the junction of the north and east fences of field numbered 151 on the 25-inch Ordnance map of the parish of Soothill Nether :

Widening No. 1 A widening on the south side of the Wakefield (otherwise called Dewsbury) Road and the west side of High Road from a point 0·55 chain south of the intersection of the said roads to a point 2 chains south of the intersection of High Road and Middle Road :

Widening No. 1A A widening on the east side of High Road between points 1·10 chains and 1·40 chains north of the intersection of the said road with Middle Road :

Widening No. 2 A widening on the west side of High Road between a point in Back Tidy Row 1 chain from its intersection with High Road and a point 0·55 chain north-west of the intersection of High Road and Park Road :

Widening No. 3 A widening on the east side of High Road between a point 1·10 chains north-west of the intersection of Back Tidy Row and High Road and the intersection of High Road and Park Road :

Widening No. 3A A widening on the east side of High Street from its junction with Park Road to a point 1·30 chains from the intersection of Park Road with High Road :

Widening No. 4 A widening on the north side of Town Street from its intersection with High Street to a point 1·20 chains east of that intersection :

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 Edw. 7.]
Act, 1904.

A.D. 1904.

Widening No. 4A A widening on the north side of Town Street between points 3 chains and 4·40 chains east of its intersection with High Street :

Widening No. 4B A widening on the north side of Town Street from its intersection with New Street to a point 0·60 chain east thereof :

Widening No. 5 A widening on the north side of Town Street and Syke Lane from the intersection of Town Street and Commercial Street to 0·90 chain east of the intersection of Syke Lane and Providence Street :

Widening No. 6 A widening on the south-east side of Syke Lane from a point 0·80 chain east of its intersection with Providence Street to the west wall of Syke Ing Mill shed :

Widening No. 7 A widening on the north-west side of Syke Lane from a point 4·90 chains east of its intersection with Providence Street to a point 3·30 chains south of Soothill Nether Cemetery :

Widening No. 8 A widening on the west side of Syke Lane from a point 3·70 chains south of Soothill Nether Cemetery to the intersection of Syke Lane with the Wakefield (otherwise called Dewsbury) Road :

Widening No. 9 A widening on the east side of Syke Lane from a point 7·30 chains south of the Soothill Nether Cemetery to a point 2·70 chains north of the southern wall of the said cemetery :

Widening No. 10 A widening on the east side of Syke Lane and the south side of Wakefield (otherwise called Dewsbury) Road from a point 1·80 chains south of its intersection with the Wakefield (otherwise called Dewsbury) Road to the said intersection.

Power to
make subsi-
diary works.

43. Subject to the provisions of this Act and within the limits defined on the deposited plans the Council in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or contiguous to the said street works and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street works or of crossing under or over the same or otherwise and may alter or divert stop up enclose use or appropriate

all or any part of any street square place court alley or passage whether a thoroughfare or not of any thoroughfare road lane or way or of any drain sewer void ground or other property shown on the deposited plans the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer Provided that the provisions of section 308 of the Public Health Act 1875 (Compensation in case of damage by local authority) shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. A.D. 1904.

44. The Council may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains mains and the leaden or other pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid into or from any main cable or pipe laid down by the Council and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. Power to alter steps areas and pipes.

45. The Council may stop up the footpath known as the Church steps adjoining the burial ground of St. Peter's Church at Earlsheaton and any other street passage or place within the limits of deviation shown on the deposited plans which they may consider unnecessary to retain as a thoroughfare. Power to stop up thoroughfares.

PART IV.

REFUSE DESTROYER.

46. The Council may subject to the provisions of this Act appropriate and use the lands described in the Second Schedule to this Act for the purpose of constructing and maintaining a refuse destructor thereon with other buildings connected therewith or subsidiary thereto with all proper machinery and appliances necessary for the proper working of the same and may construct and maintain upon such lands a refuse destructor. Lands for refuse destructor.

47. The Council may convert any clinkers or other refuse or surplus material or product arising in connexion with their Power to manufacture slabs from

A.D. 1904. refuse destructor into slabs of artificial stone bricks concrete
destructor mortar and other materials and for that purpose may purchase
refuse. take on lease or otherwise acquire lands by agreement and may
upon any lands so acquired by them or subject to the sanction
of the Local Government Board and to such conditions as that
Board may prescribe upon any lands for the time being vested
in them and available for the purpose construct such buildings
and works and may in connexion therewith provide and erect
such machinery plant and appliances as may be required and
any such slabs bricks concrete mortar or other materials so
produced may be utilised by the Council for repairing streets or
for any other purposes connected with the work of the Council
for which they may be suitable or may be sold by the Council who
shall carry the proceeds arising from any sales thereof to the
credit of the district fund.

PART V.

LANDS.

Power to
take lands.

48. The Council may subject to the provisions of this Act enter upon take and use all or any of the lands within the limits of deviation shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act or in connexion therewith.

Period for
compulsory
purchase of
lands.

49. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act.

As to assess-
ment of com-
pensation.

50. In estimating the amount of compensation or purchase money to be paid by the Council under this part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of any street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Correction of
errors &c. in
deposited
plans and
book of re-
ference.

51. If any omission misstatement or wrong description is found to have been made of any lands or of any owners lessees or occupiers of any lands shown or described or intended to be shown or described on the deposited plans or in the deposited book of reference the Council may apply to two justices for the

correction thereof after giving ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction. If it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly stating the particulars of the omission misstatement or wrong description and such certificate shall be deposited with the clerk of the peace for the county. The certificate shall be kept by the clerk of the peace with the other documents to which it relates and subject to and according to the same enactments and provisions as applied to those other documents and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Council may enter on take hold and use those lands accordingly.

A.D. 1904.

52.—(1) And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Council and, that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain lands and buildings.

(A) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(B) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

A.D. 1904.

- (c) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by them determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :
- (d) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (e) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (f) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to

treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1904.

- (c) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any other such portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

53. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

54. The Council in addition to any lands which they are otherwise by this Act authorised to acquire may from time to time by agreement purchase take on lease and acquire and hold for the purposes of this Act any lands not exceeding in the whole five acres but nothing in this section shall authorise the Council

Purchase of additional lands by agreement.

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 Edw. 7.]
Act, 1904.

A.D. 1904. — to create or permit the creation or continuance of any nuisance on any such lands.

Power to
retain sell
&c. lands.

55. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

56. So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing as aforesaid in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Agreements
with land-
owners.

57. The Council may make and carry into effect agreements with any company body or person with regard to the manner in which the street widenings shall be constructed or with regard to the accommodation works the levelling and filling up of the land fronting on the widened streets or any other matters connected with the construction of the same.

PART VI.

A.D. 1904.

FINANCIAL PROVISIONS.

58. The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say) : —

Power to borrow.

- (1) For or in connexion with the construction of the tramways by this Act authorised the sum of thirty-six thousand five hundred and twenty-three pounds :
- (2) For the purchase of the lands for and the construction of new street and street widenings by this Act authorised and which for the purposes of this part of this Act shall be deemed to form part of the tramways undertaking of the Council the sum of ten thousand three hundred and thirty pounds :
- (3) For the purchase of lands for and the construction of a refuse destructor by this Act authorised the sum of three thousand pounds :
- (4) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose.

In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of their tramway undertaking and the general district fund and general district rate.

59. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Certain regulations of Public Health Act as to borrowing not to apply.

60. The provisions of sections 236 237 238 and 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall apply in the case of all mortgages granted by the Council under this Act as if they were with necessary modifications re-enacted in this Act.

Provisions as to mortgages.

61. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions

Protection of lenders from inquiry.

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 Edw. 7.]
Act, 1904.

A.D. 1904. — of this Act or be bound to see to the application or be answerable for any loss or non-application of the money lent or of any part thereof.

As to repayment of borrowed money.

62. All moneys borrowed by the Council under the authority of this Act shall be paid off by the Council within the periods herein-after respectively mentioned (in this Act referred to as "the prescribed period") (that is to say):—

As regards moneys borrowed for the purposes (1) and (3) mentioned in the section of this Act whereof the marginal note is "Power to borrow" thirty years from the date or dates of borrowing the same:

As regards moneys borrowed for the purpose (2) in the said section forty years from the date or dates of borrowing the same:

As regards moneys borrowed for the purpose (4) in the said section five years from the passing of this Act.

Mode of payment off of money borrowed.

63. The Council shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking fund.

64.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed periods of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed periods of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments. A.D. 1904.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the funds may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed periods a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed periods the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Return
respecting
sinking fund
to Local
Government
Board.

65.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of such clerk showing for the year next preceding the making of such return or for such other period as the Board may

prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1904.
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(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

66. The Council may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for

Power to re-borrow.

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 Edw. 7.]
Act, 1904.

A.D. 1904. — that purpose Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Power to
borrow under
Local Loans
Act 1875.

67.—(1) The Council if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way and partly in another.

(2) Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the same funds rates and revenues as they would be charged upon and paid out of if raised by mortgage under this Act and such funds rates and revenues shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

(3) Every such loan shall be discharged within the prescribed period.

(4) The section of this Act of which the marginal note is "Sinking fund" shall apply to any sinking fund provided by the Council for the repayment of any moneys borrowed by them under the Local Loans Act 1875 in lieu of the provisions of section 15 of that Act.

Application
of money
borrowed.

68. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended.

Council not
to regard
trusts.

69. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given or adopted under the authority of this Act by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register and the Council shall not be bound to

see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. A.D. 1904.

70. The Council shall apply all money from time to time received by them in respect of their tramway undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account as follows (that is to say):— Application of tramway revenue.

First In maintaining the tramways and any tramways owned leased or worked by the Council and in maintaining so much of the road on which the tramway is laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870:

Secondly In payment of all working and other expenses properly chargeable to revenue:

Thirdly In payment of the interest on the moneys borrowed by the Council for the purpose of their tramway undertaking:

Fourthly In providing the requisite instalments appropriations annual repayments or sinking fund in respect of moneys borrowed by the Council for the purposes of their tramway undertaking:

Fifthly In providing a reserve fund or renewal fund if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Council upon their tramway undertaking which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from that undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of that undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens and the Council shall carry to the district fund any balance

[Ch. cv.] *Soothill Nether Urban District Tramways* [4 Edw. 7.]
Act, 1904.

A.D. 1904.
—

remaining in any year after retaining or setting aside such a sum as may in the opinion of the Council be required for carrying on their tramway undertaking and paying the current expenses connected therewith and shall also carry to the district fund the annual proceeds of the reserve fund when such fund amounts to the prescribed maximum.

As to deficiency in receipts.

71. Any deficiency in the revenue or receipts of the Council on account of their tramway undertaking shall be made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

Separate accounts to be kept as to tramway undertaking.

72. The Council shall keep the accounts in respect of their tramway undertaking separate from all their other accounts distinguishing therein capital from revenue.

Council may use lands.

73. The Council may with the consent of the Local Government Board and subject to such conditions as that Board may prescribe appropriate and use for any of the purposes of this Act or any other Acts any lands for the time being vested in them as an urban district council or otherwise and not required for the purposes for which the same were acquired but nothing in this section shall authorise the Council to create or permit any nuisance thereon. If the Council so appropriate any lands they shall charge the account for which the said lands are appropriated with a reasonable sum by way of purchase money or rent for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

Audit of accounts.

74. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Expenses of executing Act.

75. All expenses incurred by the Council in carrying into execution the provisions of this Act (except expenses under Part IV. of this Act and such other expenses as may be paid out of borrowed moneys) shall be paid out of the tramway revenue.

Expenses of Act.

76. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with complying with the requirements of the Borough Funds

[4 EDW. 7.] *Soothill Nether Urban District Tramways* [Ch. cv.]
Act, 1904.

Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or House of Commons be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of any of their rates or funds and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act. A.D. 1904.
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A.D. 1904. The **SCHEDULES** referred to in the foregoing Act.

FIRST SCHEDULE.

PREMISES OF WHICH PORTIONS ONLY MAY BE TAKEN.

District or Parish.	Numbers on deposited Plans.
Parish and urban district of Soothill Nether.	24 Shop and cottage. 25 Cottage. 26 Cottage. 27 Cottage. 28 Outbuilding. 29 Outbuilding. 30 Outbuilding. 35A Outbuilding. 35C Outbuilding. 36 Warehouse. 37 Warehouses and stable. 38 Warehouse and stable 43A House shop and outbuilding. 43B House shop and outbuilding. 45 House and shop. 48 House and shop. 49 Cottage. 51 House and shop.

SECOND SCHEDULE.

LANDS FOR REFUSE DESTRUCTOR.

Certain pieces or parcels of land containing $4\frac{3}{4}$ acres or thereabouts situate in the parish of Soothill Nether in the West Riding of the county of York comprising the fields or parts thereof enclosures and buildings thereon numbered respectively 173 174 and 149 on the Ordnance map of the said parish (scale $\frac{1}{25000}$) published in 1893.

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